

SUPREME COURT OF THE STATE OF NEW YORK
QUEENS COUNTY-----X
TYRONE HOWELL,

Plaintiff,

-against-

SUMMONS

Basis of Venue:
Place of IncidentTHE CITY OF NEW YORK, NYPD OFFICER
BRENDAN CALDERONE (Shield # 16893),
NYPD OFFICER NICHOLAS VENTIMIGLIA
(Shield # 12331), NYPD LIEUTENANT RYAN
OSHEA (Tax ID # 948016000) and NYPD OFFICERS
JOHN and JANE DOE #'s 1-12 (names and numbers
unknown at this time), and Other Unidentified members
of the New York City Police Department,Plaintiff designates
Queens County
as the place of trialDefendants.
-----X**To the above-named Defendants:**

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
May 23, 2024

Respectfully submitted,

/s/ Sydney O'Hagan
Sydney O'Hagan, Esq.
40 Exchange Place
Suite 1000
New York, New York 10005
(774) 218-3461
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TO:

CITY OF NEW YORK: CORPORATION COUNSEL, 100 Church Street, New York, NY 10007

NYPD OFFICER BRENDAN CALDERONE (Shield # 16893), 101st Precinct, 1612 Mott Avenue,
Queens, NY 11691

NYPD OFFICER NICHOLAS VENITMIGLIA (Shield # 12331), 101st Precinct, 1612 Mott Avenue,
Queens, NY 11691

NYPD LIEUTENANT RYAN OSHEA (Tax Reg. # 948016000) 101st Precinct, 1612 Mott Avenue,
Queens, NY 11691

SUPREME COURT OF THE STATE OF NEW YORK
QUEENS COUNTY

-----X
TYRONE HOWELL,

Plaintiff,

COMPLAINT

-against-

THE CITY OF NEW YORK, NYPD OFFICER
BRENDAN CALDERONE (Shield # 16893),
NYPD OFFICER NICHOLAS VENTIMIGLIA,
(Shield # 12331), NYPD LIEUTENANT RYAN
OSHEA (Tax ID # 948016000) and NYPD OFFICERS
JOHN and JANE DOE #'s 1-12 (names and numbers
unknown at this time), and Other Unidentified members
of the New York City Police Department,

Defendants.

-----X
Plaintiff **Tyrone Howell**, by his attorney, SYDNEY O'HAGAN, ESQ., as and for the Complaint herein, alleges
upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983 and the rights secured by the Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution the laws of the State of New York. Plaintiff was unlawfully stopped, searched, and arrested by the defendants. Plaintiff was deprived of his federal constitutional rights, state constitutional rights, and common law rights when the individually named police defendants subjected him to, among other things, violation of Plaintiff's 1st Amendment rights, assault, false arrest, unlawful search and seizure, excessive force, negligence, gross negligence, intentional and negligent infliction of emotional distress, malicious prosecution, and implementation and continuation of an unlawful municipal

policy, practice, and custom. Plaintiff seeks compensatory and punitive damages, declaratory relief, an award of costs and attorney's fees and such other relief as the Court deems just and proper.

PARTIES

2. Plaintiff is a resident of Queens County, State of New York.
3. Defendant City of New York is a municipal corporation organized under the laws of the State of New York, which violated plaintiff's rights as described herein. NYPD OFFICER BRENDAN CALDERONE (Shield # 16893), NYPD OFFICER NICHOLAS VENTIMIGLIA (Shield # 12331), and NYPD LIEUTENANT RYAN OSHEA (Tax Reg. # 948016000) on or about August 26, 2022, were employed with the New York City Police Department ("NYPD"), and were at all time relevant herein officers, employees, and agents of the NYPD.
4. NYPD OFFICER BRENDAN CALDERONE (Shield # 16893), NYPD OFFICER NICHOLAS VENTIMIGLIA (Shield # 12331), and NYPD LIEUTENANT RYAN OSHEA (Tax Reg. # 948016000) are being sued in their individual capacity and official capacity.
5. Police Officer John Doe Number 1 is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
6. Police Officer John Doe #1 is being sued in his individual capacity and official capacity.
7. New York Police Officers John and Jane Doe #'s 2-12 are and were at all times relevant herein an officer, employee, and agent of the New York City Police Department.
8. Police Officers John and Jane Doe #'s 2-12 are being sued in his/her individual capacity and official capacity.
9. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the

performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents, and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

10. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as agents in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.
11. Plaintiff in furtherance of his State causes of action filed a timely Notice of Claim upon the City of New York in compliance with Municipal Law Section 50.
12. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claim.
13. The City of New York held a 50(h) hearing examination of Plaintiff on March 14, 2024.

STATEMENT OF FACTS

14. On August 26, 2022, at approximately 10:30 p.m. in the vicinity of Beach 46 Street and Beach Channel Drive, Queens County, when several NYPD officers from the 101st Precinct, and other unknown police commands, including upon information and belief, defendant NYPD officers BRENDAN CALDERONE (Shield # 16893), NICHOLAS VENTIMIGLIA (Shield # 12331), NYPD LIEUTENANT RYAN OSHEA (Tax Reg. # 948016000) and P.O. John and Jane Does #1-

12, and other as yet unknown police officers, at times acting in concert and at times acting independently, committed the following illegal acts against Plaintiff.

15. On August 26, 2022, at approximately 10:30 p.m., Plaintiff had parked his car in a legal parking spot near his mother's house when several officers, including defendant officers CALDERONE, VENTIMIGLIA, and OSHEA approached him and asked him for his license and registration.
16. Plaintiff Howell provided the license and registration to defendant officers. Plaintiff had a valid license and the vehicle was lawfully registered.
17. Plaintiff asked defendant officers why he had been stopped and detained in the first place. Each defendant officers provided a different justification for the stop, none of which were true.
18. After Plaintiff finished his interaction with defendant officers, he asked for permission to exit his vehicle so he could proceed to his mother's house. Defendant Lieutenant Oshea told Plaintiff he could exit the vehicle.
19. After Plaintiff exited the vehicle, defendant Lieutenant OSHEA handed Plaintiff what appeared to be a business card.
20. Plaintiff declined to take the business card from defendant Lieutenant OSHEA.
21. Shortly thereafter, defendant officers accused Plaintiff of getting into Lieutenant OSHEA's face and attacked him. One defendant officer rushed Plaintiff, grabbing him around the waist and shoving him to the car door. Other defendant officers punched Plaintiff. Plaintiff was struck multiple times by defendant officers' blows.
22. Plaintiff was handcuffed and taken to the 101st precinct.
23. Shortly after entering the precinct, defendant officer CALDERON assaulted Plaintiff by hitting him in his groin area and shoving him. During the several hours spent at the precinct, Plaintiff

handcuffed to a bar outside of a cell. This was done purely for purposes of retaliation, rather than for security purposes or any other justifiable reason.

24. Plaintiff was subjected to a strip search at the precinct. He was never charged with any crime that would justify a strip search. As such, the strip search was conducted purely for purposes of humiliating and degrading Plaintiff.
25. The car Plaintiff was driving suffered approximately \$850 in damage due to defendant officers' actions of throwing Plaintiff into the side of the vehicle.
26. Eventually, Plaintiff was transferred to Queens County Central Booking.
27. Plaintiff was in custody for approximately twenty-seven hours before the Court released him on his own recognizance.
28. While plaintiff was incarcerated at the 101st Precinct and Queens County Central Booking, defendants falsely and maliciously told the Queens County District Attorney's Office that Plaintiff had committed various crimes, including Disorderly Conduct, Littering, Equipment Violation, Harassment, Obstruction of Governmental Administration and Resisting Arrest. Defendant officers knew these allegations to be false when they spoke to the District Attorney.
29. All charges against Plaintiff were dismissed and sealed in the interest of justice on February 27, 2023.
30. Following his arrest, Plaintiff suffered from pain and injury to his body, including his wrists and back. Plaintiff continues to face ongoing mental trauma and fear because of the illegal actions of the NYPD defendants on August 26, 2022.

FIRST CAUSE OF ACTION**ASSAULT**

31. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 30 with the same force and effect as if more fully set forth herein.
32. Defendants their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to Plaintiff, and that such acts caused apprehension of such contact in Plaintiff. Plaintiff was assaulted by numerous defendant NYPD Officers, including, but not limited to, defendant officers CALDERONE, VENTIMIGLIA, and OSHEA prior to his false and illegal arrest when said defendants shoved him, punched and threw him around at the scene of his arrest. Additionally, defendant officer CALDERONE shoved and hit Plaintiff subsequent to his arrest, at the precinct. Plaintiff was also unnecessarily subject to prolonged handcuffing at the precinct.
33. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct.
34. The City, as the employer of defendants is responsible for their wrongdoing under the doctrine of respondeat superior.

SECOND CAUSE OF ACTION**BATTERY**

35. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 34 with the same force and effect as if more fully set forth herein.

36. Defendants their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered Plaintiff, when they, in a hostile and/or offensive manner with the intention of causing harmful and/or offensive bodily contact to Plaintiff and caused such battery. Plaintiff was forcibly, punched, and thrown into the side of a vehicle. He was unnecessarily handcuffed for a prolonged period and hit in the groin while at the precinct. These acts were committed without justification both prior to and subsequent to his false and illegal arrest.
37. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
38. The City, as the employer of Defendants is responsible for their wrongdoing under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION

FALSE ARREST AND FALSE IMPRISONMENT

39. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 38 as if fully set forth herein.
40. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.
41. The individually named defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

42. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

FOURTH CAUSE OF ACTION

MALICIOUS PROSECUTION

43. The plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 42 with the same force and effect as if more fully set forth at length herein.
44. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York.
45. Defendants commenced and continued a criminal proceeding against Plaintiff with malice and without probable cause, caused him a serious deprivation of liberty. Namely, defendant officers falsely told the Queens County District Attorney's office that Plaintiff had engaged in illegal conduct, when, in reality, he did nothing unlawful. He was arrested in retaliation for his unwillingness to take the business card of Lieutenant OSHEA. As a result, Plaintiff obtained a favorable termination on the fabricated charges.
46. Defendants commenced and continued a criminal proceeding against Plaintiff.
47. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiff and for each of the charges for which he was prosecuted.
48. The prosecution and criminal proceedings terminated favorably to Plaintiff on February 27, 2023.
49. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate his state constitutional and tort rights.
50. The individually named Defendant Police Officers were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

FIFTH CAUSE OF ACTION**NEGLIGENT HIRING, RETENTION, TRAINING AND SUPERVISION**

51. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 50 with the same force and effect as if more fully set forth at length herein.
52. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise the individually named defendants, individuals who were unfit for the performance of NYPD duties.

SIXTH CAUSE OF ACTION**FAILURE TO INTERVENE**

53. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 52 with the same force and effect as if more fully set forth at length herein.
54. Defendants had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other members of the NYPD, subjecting Plaintiff to, *inter alia*, unlawful search and seizure, assault, battery, excessive force, detention, and malicious prosecution.
55. Defendants failed to intervene to prevent the unlawful conduct described herein despite having had a reasonable opportunity to do so, and full knowledge of the unlawful conduct.
56. As a result of the foregoing, Plaintiff was subjected to illegal search and undue force upon his person over the course of his false arrest.
57. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct.

58. The City, as the employer of defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SEVENTH CAUSE OF ACTION

NEGLIGENCE

59. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 55 with the same force and effect as if more fully set forth at length herein.
60. Defendants owed a duty of care to Plaintiff.
61. Defendants breached that duty of care by subjecting him to unjustified illegal search and undue force and unprivileged deprivation of his liberty without sufficient or any cause to do so. They failed to provide adequate care for him at the precinct and instead subjected him to prolonged handcuffing.
62. As a direct and proximate cause of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
63. All of the foregoing occurred without any fault by Plaintiff.
64. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

EIGHTH CAUSE OF ACTION

INTENTIONAL AND NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS

65. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 64 with the same force and effect as if more fully set forth at length herein.
66. By the actions described herein, the individually named police officer defendants, each acting individually and in concert with one another, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to

Plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

67. As a result of the foregoing, Plaintiff was deprived of liberty and sustained great physical and emotional injuries.
68. The City, as the employer of the defendants, is responsible for their wrongdoing under the doctrine of respondeat behavior.

FEDERAL CLAIMS

FIRST CLAIM FOR RELIEF

DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983

69. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
70. All of the aforementioned acts of defendants NYPD OFFICERS CALDERONE, VENTIMIGLIA, OSHEA and NYPD OFFICERS JOHN and JANE DOE #1-12, their agents, servants, and employees, were carried out under the color of state law.
71. All of the aforementioned acts deprived Plaintiff of his rights, privileges, and immunities guaranteed to citizens of the United States by the Fourth, Fifth, Sixth, and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.
72. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.
73. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of

the City of New York, the New York City Police Department, all under the supervision of ranking officers of said department.

74. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

SECOND CLAIM FOR RELIEF

USE OF EXCESSIVE FORCE UNDER 42 U.S.C. § 1983

75. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
76. Defendants NYPD OFFICERS CALDERONE, VENTIMIGLIA, OSHEA and NYPD OFFICERS JOHN and JANE DOE #1-12 used excessive force in violation of Plaintiff's rights under the Fourth Amendment to the United States Constitution to be free of the use of excessive force.
77. Defendants NYPD OFFICERS CALDERONE, VENTIMIGLIA, OSHEA and NYPD OFFICERS JOHN and JANE DOE #1-12 committed the intentional torts of assault and battery against Plaintiff by pushing her to the ground on multiple occasions, pinning him to the ground by hitting, punching and shoving, all without justification.
78. In so doing, the conduct of NYPD OFFICERS CALDERONE, VENTIMIGLIA, OSHEA and NYPD OFFICERS JOHN and JANE DOE #1-12 went well beyond the reasonable force necessary to detain and arrest Plaintiff, and the amount of force that a reasonable officer under the same or similar circumstances would use.
79. At the time that Defendants NYPD OFFICERS CALDERONE, VENTIMIGLIA, OSHEA and NYPD OFFICERS JOHN and JANE DOE #1-12 detained Plaintiff, he was not resisting arrest or acting in a threatening or menacing manner. Plaintiff was not carrying or displaying weapons or any dangerous instruments. No orders were given by Police Officer Defendants to the Plaintiff to

stop, remain in place, or otherwise act in a manner that failing to comply would in any way justify the use of physical force, let alone the extreme and outrageous physical contact Defendant Officers subjected Plaintiff to.

80. As a result of the foregoing, Plaintiff was the victim of the torts of assault and battery resulting in physical and emotional injuries, his liberty was restricted for an extended period of time, he was put in fear for his safety, and was humiliated and subjected to handcuffing and other physical restraints without probable cause.

THIRD CLAIM FOR RELIEF

FALSE ARREST UNDER 42 U.S.C. § 1983

81. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
82. As a result of the aforesaid conduct by defendants NYPD OFFICERS CALDERONE, VENTIMIGLIA, OSHEA and NYPD OFFICERS JOHN and JANE DOE #1-12, Plaintiff was subjected to an illegal, improper, and false arrest by the defendants NYPD OFFICERS CALDERONE, VENTIMIGLIA, OSHEA and NYPD OFFICERS JOHN and JANE DOE #1-12, taken into custody and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.
83. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and was humiliated, searched, and subjected to handcuffing and other physical restraints, without probable cause.

FOURTH CLAIM FOR RELIEF

UNLAWFUL SEARCH UNDER 42 U.S.C. § 1983

84. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
85. Plaintiff's person was searched by defendants NYPD OFFICERS CALDERONE, VENTIMIGLIA, OSHEA and NYPD OFFICERS JOHN and JANE DOE #1-12 without an individualized reasonable suspicion that Plaintiff had committed any crime or was in possession of any illicit contraband, illegal weapons, or any other illegal substances. Specifically, Plaintiff was subjected to a strip search at the precinct, even though officers had no suspicion or reason to belief he had secreted any contraband or weapons on his person.
86. As a result of the aforesaid conduct by defendants NYPD OFFICERS CALDERONE, VENTIMIGLIA, OSHEA and NYPD OFFICERS JOHN and JANE DOE #1-12, Plaintiff's person was illegally and improperly searched without consent, a valid warrant, probable cause, and a specific articulable factual basis supporting a reasonable suspicion and/or probable cause to believe Plaintiff was in possession of contraband or any illegal substance as set forth in the Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States.
87. As a result of the foregoing, Plaintiff was deprived of his Constitutional rights and has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

FIFTH CLAIM FOR RELIEF

DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL UNDER 42 U.S.C. § 1983

88. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
89. Defendants NYPD OFFICERS CALDERONE, VENTIMIGLIA, OSHEA and NYPD OFFICERS JOHN and JANE DOE #1-12 created false evidence against the plaintiff, alleging that he

committed the crimes of Disorderly Conduct, Littering, Equipment Violation, Harassment, Obstruction of Governmental Administration and Resisting Arrest

90. Defendants NYPD OFFICERS CALDERONE, VENTIMIGLIA, OSHEA and NYPD OFFICERS JOHN and JANE DOE #1-12 forwarded false evidence and false information to prosecutors in the Queens County District Attorney's Office – namely, the defendants falsely informed prosecutors *inter alia*, that they alleged Plaintiff assaulted or spit on officers when that did not occur.
91. Defendants NYPD OFFICERS CALDERONE, VENTIMIGLIA, OSHEA and NYPD OFFICERS JOHN and JANE DOE #1-12 misled the prosecutors by creating false evidence against the Plaintiff, including failing to inform them of the circumstances that lead to them approaching him in the first place. Defendant officers continued to provide the aforementioned false statements throughout the criminal proceedings.
92. In creating false evidence against the plaintiff, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants NYPD OFFICER CALDERONE, VENTIMIGLIA, OSHEA and NYPD OFFICERS JOHN and JANE DOE #1-12 violated Plaintiff's constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.
93. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

SIXTH CLAIM FOR RELIEF

FAILURE TO INTERCEDE UNDER 42 U.S.C. § 1983

94. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

95. Defendants NYPD OFFICERS CALDERONE, VENTIMIGLIA, OSHEA and NYPD OFFICERS JOHN and JANE DOE #1-12 had an affirmative duty to intercede when Plaintiff's constitutional rights were being violated in defendants' presence by committing the acts of false arrest, unlawful imprisonment, and the misrepresentation and falsification of evidence regarding the circumstances surrounding Plaintiff's arrest throughout all phases of the criminal proceedings.
96. Defendants NYPD OFFICERS FERGUSON, ROSALES, KING, and NYPD OFFICERS JOHN and JANE DOE #1-12 further violated Plaintiff's constitutional rights when they failed to intercede and prevent the violation or further violation of Plaintiff's constitutional rights and the injuries or further injuries caused as a result of said failure.
97. As a result of the defendants' failure to intercede when Plaintiff's constitutional rights were being violated in defendants' presence, Plaintiff sustained, *inter alia*, emotional injuries, Plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, was assaulted, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

SEVENTH CLAIM FOR RELIEF

MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983

98. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
99. Defendants NYPD OFFICERS CALDERONE, VENTIMIGLIA, OSHEA and NYPD OFFICERS JOHN and JANE DOE #1-12 misrepresented and falsified evidence before the Queens County District Attorney, including false allegations that Plaintiff committed Disorderly Conduct, Littering, Equipment Violation, Harassment, Obstruction of Governmental Administration and Resisting Arrest.

100. Defendants NYPD OFFICERS CALDERONE, VENTIMIGLIA, OSHEA and NYPD OFFICERS JOHN and JANE DOE #1-12 did not make a complete and full statement of facts to the District Attorney.
101. Defendants NYPD OFFICERS CALDERONE, VENTIMIGLIA, OSHEA and NYPD OFFICERS JOHN and JANE DOE #1-12 withheld exculpatory evidence from the District Attorney.
102. Defendants NYPD OFFICERS CALDERONE, VENTIMIGLIA, OSHEA and NYPD OFFICERS JOHN and JANE DOE #1-12 were directly and actively involved in the initiation of criminal proceedings against plaintiff.
103. Defendants NYPD OFFICERS CALDERONE, VENTIMIGLIA, OSHEA and NYPD OFFICERS JOHN and JANE DOE #1-12 lacked probable cause to initiate criminal proceedings against plaintiff.
104. Defendants NYPD OFFICERS CALDERONE, VENTIMIGLIA, OSHEA and NYPD OFFICERS JOHN and JANE DOE #1-12 acted with malice in initiating criminal proceedings against plaintiff.
105. Defendants NYPD OFFICERS CALDERONE, VENTIMIGLIA, OSHEA and NYPD OFFICERS JOHN and JANE DOE #1-12 were directly and actively involved in the continuation of criminal proceedings against plaintiff.=
106. Defendants NYPD OFFICERS CALDERONE, VENTIMIGLIA, OSHEA and NYPD OFFICERS JOHN and JANE DOE #1-12 lacked probable cause to continue criminal proceedings against plaintiff.
107. Defendants NYPD OFFICERS CALDERONE, VENTIMIGLIA, OSHEA NYPD OFFICERS JOHN and JANE DOE #1-12 acted with malice in continuing criminal proceedings against plaintiff.

108. Defendants NYPD OFFICERS CALDERONE, VENTIMIGLIA, OSHEA and NYPD OFFICERS JOHN and JANE DOE #1-12 misrepresented and falsified evidence throughout all phases of the criminal proceedings.
109. Specifically, defendants NYPD OFFICERS CALDERONE, VENTIMIGLIA, OSHEA and NYPD OFFICERS JOHN and JANE DOE #1-12 made the aforementioned false and misleading allegations regarding the circumstances surrounding Plaintiff's arrest.
110. Notwithstanding the perjurious and fraudulent conduct of defendants NYPD OFFICERS CALDERONE, VENTIMIGLIA, OSHEA and NYPD OFFICERS JOHN and JANE DOE #1-12, the criminal proceedings were terminated in Plaintiff's favor on February 27, 2023.
111. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, he suffered economic damages, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

EIGHTH CLAIM FOR RELIEF

1st AMENDMENT VIOLATION UNDER 42 U.S.C. § 1983

112. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
113. By their conduct, as described herein, and acting under color of state law to deprive the plaintiff of his right to freedom of speech under the First and Fourteenth Amendments, defendant CALDERONE, VENTIMIGLIA, OSHEA and POLICE OFFICERS "JOHN DOE" #1-8 are liable for the violation of 42 U.S.C. § 1983, which prohibits the deprivation under color of state law of rights secured under the United States Constitution.

114. Defendants CALDERONE, VENTIMIGLIA, OSHEA and/or POLICE OFFICERS “JOHN DOE” #1-8 violated plaintiff’s First Amendment rights to speech by unlawfully denying him the right to speak freely by subjecting him to false arrest to deter the exercise of his First Amendment rights.
115. Defendants CALDERONE, VENTIMIGLIA, OSHEA and/or POLICE OFFICERS “JOHN DOE” #1-8’s actions were taken in retaliation for plaintiff exercising his First Amendment rights against defendants CALDERONE, VENTIMIGLIA, OSHEA and/or POLICE OFFICERS “JOHN DOE” #1-8. Specifically, defendants’ actions were taken in retaliation for Plaintiff telling Lieutenant OSHEA he did not want his business card. In retaliation, Plaintiff was assaulted, searched and arrested without his consent by defendants CALDERONE, VENTIMIGLIA, OSHEA and/or POLICE OFFICERS “JOHN DOE” #1-8.
116. As a consequence of defendants’ CALDERONE, VENTIMIGLIA, OSHEA and/or POLICE OFFICERS “JOHN DOE” #1-8’s actions, plaintiff suffered violations of his First and Fourteenth Amendment rights to free speech.
117. As a direct and proximate result of the defendants CALDERONE, VENTIMIGLIA, OSHEA and/or POLICE OFFICERS “JOHN DOE” #1-8’s unlawful actions, plaintiff has suffered damages including, loss of liberty, economic damages, physical injuries, mental and emotional injury and pain, mental anguish, suffering, humiliation, embarrassment, and loss of reputation.

NINTH CLAIM FOR RELIEF

MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

118. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
119. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

120. The aforementioned customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- a. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and,
- b. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,
- c. fabricating evidence in connection with their arrest/prosecution in order to cover up police misconduct; and,
- d. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing and regardless of probable cause, for the purpose of obtaining overtime compensation; and
- e. failing to take reasonable steps to control and/or discipline police officers who lie, fabricate evidence, and/or commit perjury in order to cover up police misconduct and/or inflate arrest statistics.

121. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of the Plaintiff.

122. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the Plaintiff as alleged herein.

123. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the Plaintiff as alleged herein.

124. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the Plaintiff's constitutional rights.

125. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the Plaintiff's constitutional rights.

126. The acts complained of deprived the Plaintiff of their right:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from seizure and arrest not based upon probable cause;
- C. Not to have summary punishment imposed upon them; and
- D. To receive equal protection under the law.

WHEREFORE, TYRONE HOWELL, Plaintiff, demands a judgment against the defendants on each cause of action in amounts to be determined upon the trial of this actions which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorney's fees inclusive of costs and disbursements of this action, interest and such other relief as appropriate under the law.

Dated: New York, New York
May 23, 2024

Respectfully submitted:

By: /s/ Sydney O'Hagan
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TO:

CITY OF NEW YORK: CORPORATION COUNSEL, 100 Church Street, New York, NY 10007

NYPD OFFICER BRENDAN CALDERONE (Shield # 16893), 101st Precinct, 1612 Mott Avenue,
Queens, NY 11691

NYPD OFFICER NICHOLAS VENITMIGLIA (Shield # 12331), 101st Precinct, 1612 Mott Avenue,
Queens, NY 11691

NYPD LIEUTENANT RYAN OSHEA (Tax Reg. # 948016000) 101st Precinct, 1612 Mott Avenue,
Queens, NY 11691

ATTORNEY'S VERIFICATION

I, **SYDNEY O'HAGAN**, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am attorney at the law firm of **SYDNEY O'HAGAN, ESQ.**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters wherein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff's is that Plaintiff is out of the county.

DATED: New York, New York
May 23, 2024

/s/ Sydney O'Hagan
Sydney O'Hagan, Esq.